

Opinion of the Court

venpeck v. Alford, 543 U. S. 146, 149, 155–156 (2004) (noting that the suspect’s “untruthful and evasive” answers to police questioning could support probable cause).

The panel majority relied heavily on the fact that Peaches said she had invited the partygoers to the house. But when the officers spoke with Peaches, she was nervous, agitated, and evasive. Cf. *Wardlow*, *supra*, at 124 (explaining that the police can take a suspect’s “nervous, evasive behavior” into account). After initially insisting that she had permission to use the house, she ultimately confessed that this was a lie—a fact that the owner confirmed. Peaches’ lying and evasive behavior gave the officers reason to discredit everything she had told them. For example, the officers could have inferred that Peaches lied to them when she said she had invited the others to the house, which was consistent with the fact that hardly anyone at the party knew her name. Or the officers could have inferred that Peaches told the partygoers (like she eventually told the police) that she was not actually renting the house, which was consistent with how the partygoers were treating it.

Viewing these circumstances as a whole, a reasonable officer could conclude that there was probable cause to believe the partygoers knew they did not have permission to be in the house.

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In concluding otherwise, the panel majority engaged in an “excessively technical dissection” of the factors supporting probable cause. *Gates*, 462 U. S., at 234. Indeed, the panel majority failed to follow two basic and well-established principles of law.

First, the panel majority viewed each fact “in isolation, rather than as a factor in the totality of the circumstances.” *Pringle*, 540 U. S., at 372, n. 2. This was “mistaken in light of our precedents.” *Ibid.* The “totality of the circumstances” requires courts to consider “the whole picture.” *Cortez*, 449 U. S., at 417. Our precedents recognize that the